

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
SPRING DAVID,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, DETECTIVE JAVIER
MUNOZ, Tax No. 935373, SERGEANT KEVIN BESLITY,
Tax No. 916992, POLICE OFFICER YIQI SUN, Tax No.
946302, and POLICE OFFICERS JOHN DOES #s 1-10
(names and number of whom are unknown at present),Plaintiff designates Kings
County as the place of trial.Defendants.
----- X**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 4, 2023

Yours, etc.

*David Hazan*_____
JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church
Street, New York, New York 10007
DETECTIVE JAVIER MUNOZ, TAX NO. 935373, Executive Protection Unit
SERGEANT KEVIN BESLITY, TAX NO. 916992, Detective Bureau Grand Larceny
Division,
POLICE OFFICER YIQI SUN, TAX NO. 946302, Headquarters Security

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SPRING DAVID,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JAVIER
MUNOZ, Tax No. 935373, SERGEANT KEVIN
BESLITY, Tax No. 916992, POLICE OFFICER YIQI
SUN, Tax No. 946302, and POLICE OFFICERS JOHN
DOES #s 1-10 (names and number of whom are unknown
at present),

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff SPRING DAVID, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on March 4, 2020, at approximately 6:30 am plaintiff was lawfully sleeping in her bedroom located at 1475 Locke Street, Apt. 519, Brooklyn, New York 11239 at which time she was awoken by defendants forcefully entering her apartment screaming profanities and pointing their weapons at her. The officers unlawfully handcuffed plaintiff while they searched the entire apartment. The officers searched the entire apartment and did not recover any illegal drugs, weapons, or contraband from within the apartment or from plaintiff's possession, custody or control. The officers unlawfully seized \$101,500 from the apartment and to date the money has not been returned to plaintiff. Additionally, plaintiff's desktop computer and other electronics were seized from plaintiff's apartment and were never returned to plaintiff because they were auctioned off by the police department without placing plaintiff on notice that they would be actioned. The officers did not possess objective facts to establish probable cause to believe any of the seized money was obtained through criminal activity. The officers falsely arrested plaintiff, without probable cause to believe she committed a crime. Plaintiff was transported to a police precinct whereat she was unlawfully searched, interrogated, fingerprinted, photographed. Plaintiff voluntarily gave a DNA sample to the defendants. After

many hours the police officers gave plaintiff a DAT and released her from custody. Plaintiff hired a private criminal attorney for \$2,500 to represent her in the criminal case. Plaintiff was falsely charged with criminal possession of a firearm, without probable cause, based upon the false, misleading, and incomplete information provided to the DA's Office by the police officers. The false allegations made by the officers formed the basis for the crimes she was charged with committing at arraignment, without probable cause. On April 18, 2022 plaintiff learned that all criminal charges brought against her were dismissed and sealed in their entirety. The defendant police officers who didn't physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution and neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully entered her apartment, stopped, questioned, frisked, searched, confined, falsely arrested, denied plaintiff the right to due process and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff SPRING DAVID is a resident of the state of New York.

3. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, was assigned to the Detective Bureau Grand Larceny Division at the time of the underling incident and is presently assigned to the Executive Protection Unit.

5. Defendant DETECTIVE JAVIER MUNOZ, Tax No. 935373, is being sued in his individual and official capacity.

6. Defendant SERGEANT KEVIN BESLITY, Tax No. 916992, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant SERGEANT KEVIN BESLITY, Tax No. 916992, was at all times relevant herein, assigned to the Detective Bureau Grand Larceny Division.

8. Defendant SERGEANT KEVIN BESLITY, Tax No. 916992, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER YIQI SUN, Tax No. 946302, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER YIQI SUN, Tax No. 946302, was assigned to the Detective Bureau Grand Larceny Division at the time of the underlying incident and is presently assigned to Headquarters Security.

11. Defendant POLICE OFFICER YIQI SUN, Tax No. 946302, is being sued in his individual and official capacity.

12. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. Plaintiff alleges that on March 4, 2020, at approximately 6:30 am plaintiff was lawfully sleeping in her bedroom located at 1475 Locke Street, Apt. 519, Brooklyn, New York 11239 at which time she was awoken by defendants forcefully entering her apartment screaming profanities and pointing their weapons at her.

19. The officers entered the apartment without a validly obtained warrant or any other legal basis.

20. The officers unlawfully handcuffed plaintiff while they searched the entire apartment.

21. The officers searched the entire apartment and did not recover any illegal drugs, weapons, or contraband from within the apartment or from plaintiff's possession, custody, or control.

22. The officers unlawfully seized \$101,500 from the apartment and to date the money has not been returned to plaintiff.

23. Additionally, plaintiff's desktop computer and other electronics were seized from plaintiff's apartment and were never returned to plaintiff because they were auctioned off by the police department without placing plaintiff on notice that they would be actioned.

24. The officers did not possess objective facts to establish probable cause to believe any of the seized money was obtained through criminal activity.

25. The officers falsely arrested plaintiff, without probable cause to believe she committed a crime. Plaintiff was transported to a police precinct whereat she was unlawfully searched, interrogated, fingerprinted, photographed.

26. Plaintiff voluntarily gave a DNA sample to the defendants. After many hours the police officers gave plaintiff a DAT and released her from custody.

27. Plaintiff hired a private criminal attorney for \$2,500 to represent her in the criminal case.

28. Plaintiff was falsely charged with criminal possession of a firearm, without probable cause, based upon the false, misleading, and incomplete information provided to the DA's Office by the police officers.

29. The false allegations made by the officers formed the basis for the crimes she was charged with committing at arraignment, without probable cause.

30. On April 18, 2022, plaintiff learned that all criminal charges brought against her were dismissed and sealed in their entirety.

31. The defendant police officers who didn't physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution and neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

32. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully entered her apartment, stopped, questioned, frisked, searched, confined, falsely arrested, denied plaintiff the right to due process and maliciously prosecuted

plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

33. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband of any kind from plaintiff's possession, custody, or control.

34. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

35. The defendants provided false, misleading, and incomplete evidence to the Kings County District Attorney's Office to justify their basis for arresting plaintiff and charging her with crimes.

36. The defendant officers unlawfully stopped, seized, searched, and falsely arrested plaintiff even though the officers knew plaintiff had not violated the law in any respect.

37. At no time relevant herein did the defendant police officers possess reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law.

38. The defendant police officers did not recover any illegal drugs, weapons or contraband pursuant to the unlawful search of plaintiff or at any other time relevant herein.

39. Defendants unlawfully searched plaintiff without probable cause.

40. Defendants did not recover any illegal drugs, weapons, or contraband on plaintiff or from plaintiff's possession, custody, or control pursuant to the unlawful frisk and search of plaintiff's person.

41. At no time relevant herein did plaintiff violate the law or behave in a manner that would have given defendants reasonable suspicion or probable cause to believe plaintiff violated the law, was violating the law or was about to violate the law.

42. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

43. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to

engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

44. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

45. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

46. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

47. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

48. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, and falsely imprisoned, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

56. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

58. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

59. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

62. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

63. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

64. Defendants lacked probable cause to search plaintiff.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 67 with the same force and effect as if fully set forth herein.

69. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

70. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

71. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

72. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

74. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

76. Defendants failed to intervene to prevent the unlawful conduct described herein.

77. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

80. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

81. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

82. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

83. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

84. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

85. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

86. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

87. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

88. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

89. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

90. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff SPRING DAVID demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 4, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
March 4, 2023



DAVID M. HAZAN